

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

ORLEANS INTERNATIONAL, INC., *Complainant*

v.

HAPAG LLOYD AG, *Respondent*.

DOCKET NO. 26-04

Served: June 15, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING WITHOUT PREJUDICE RESPONDENT’S CONSENT MOTION TO AMEND
RESPONDENT’S REPLY TO COMPLAINANT’S MEMORANDUM IN OPPOSITION TO RESPONDENT’S
MOTION TO DISMISS**

On June 12, 2026, Respondent filed Respondent’s Consent Motion to Amend Respondent’s Reply to Complainant’s Memorandum in Opposition to Respondent’s Motion to Dismiss (“Motion to Amend Reply”). Respondent indicates that it wants to file an amended version of its reply brief in support of its motion to dismiss. Respondent represents that Complainant consented to the Motion to Amend Reply.

The Motion to Amend Reply is **DENIED**. Although I appreciate that Complainant did not object to the Motion to Amend Reply, it is unclear why Respondent seeks this relief. Not only did I already rule on the motion to dismiss, but Complainant already filed a Verified Amended Complaint (“VAC”). The VAC renders the motion to dismiss moot, and briefs addressing the original Complaint are no longer appropriate. Respondent may now either answer the VAC or otherwise respond to it. (*See Order Denying In Part Motion to Dismiss and Allowing Complainant to File an Amended Complaint (the “May 29 Order”), at 10*). Moreover, it appears that the proposed reply brief merely eliminates a few sentences and includes no meaningful change. Assuming, without deciding, that Respondent’s reply brief would be stronger or better as amended, I will not change my May 29 Order based on the amended reply brief.

This Order is without prejudice. Respondent may file a motion to amend its reply brief explaining why this relief is necessary despite the fact that the VAC has been filed.

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge